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JULIO MARTINEZ,

Plaintiff,

v.

PARTNERS PERSONNEL MANAGEMENT SERVICES,
LLC, et al.,

Defendants.

Case No.: 25STCV36354

Hearing Date: June 29, 2026

[TENTATIVE]
order RE:

defendant partners personnel management
services, llc's motion to compel arbitration

BACKGROUND

On December 12, 2025, Plaintiff
Julio Martinez filed this employment discrimination action against Defendants
Partners Personnel Management Services, LLC; Organic Filling Solutions, LLC;
Sedrik Perez; and Azzam Jazairi.

On May 27, 2026, Defendant Partners Personnel Management Services, LLC filed the instant motion to compel arbitration. Plaintiff filed an opposition on June 15, 2026. Defendant filed a reply on June 22, 2026.

LEGAL STANDARD

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists….” (Code Civ. Proc, § 1281.2.) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

DISCUSSION

I.
Proving an Agreement to Arbitrate

“As to the existence of an agreement, [the moving party bears] the ultimate burden of proof, but the court [is] obliged to resolve the dispute using a three-step burden-shifting process.” (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.)

a. Defendant’s Initial Burden

“The moving party ‘can meet its initial burden by attaching to the motion or petition a copy of the arbitration agreement purporting to bear the opposing party's signature.’” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) “At this step, a movant need not ‘follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and support the allegation.’” (Iyere, supra, 87 Cal.App.5th at p. 755.)

Here, Defendant presents evidence of a “Mutual Voluntary Agreement for Individual Arbitration” which covers “any and all disputes between You and the Company that may arise out of or be related in any way to your application for employment and/or employment with the Company and/or this Agreement.” (Rivas Decl., Ex. 1.) The evidence indicates that Plaintiff electronically signed a Spanish version of the agreement on January 7, 2025. (Ibid.) The attachment includes an interpreter certification. (Ibid.)

Defendant’s witness avers that employees must complete the arbitration agreement within the company’s Tempworks software using a unique account. (Rivas Decl. ¶¶ 3-9.) The witness confirms that Plaintiff signed the arbitration agreement on January 7, 2025 through his Tempworks account. (Id., ¶¶ 12-17.)

This satisfies Defendant’s initial burden on the motion.

b. Plaintiff’s Burden to Raise a Factual Dispute

“If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence—in this instance, by disputing the authenticity of their signatures. To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.” (Iyere, supra, 87 Cal.App.5th at p. 755.)

“[T]he individual's inability to recall signing electronically may reasonably be regarded as evidence that the person did not do so.” (Iyere, supra, 87 Cal.App.5th at p. 757.) Here, Plaintiff does not recall being presented with an arbitration agreement and does not recall creating a Tempworks account. (Martinez Decl. ¶¶ 3-5.) Plaintiff does not recall electronically signing the arbitration agreement and avers that he would not have signed one had he been presented with it. (Id., ¶¶ 5, 7.) This is sufficient to raise a factual dispute, shifting the burden back to Defendant.

c. Defendant’s Ultimate Burden

An electronic signature has the same legal effect as a handwritten signature. (Civ. Code, § 1633.7(a).) An “electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.” (Id., § 1633.9(a).) “[T]he burden of authenticating an electronic signature is not great.” (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 844.)

Here, the declaration of Jennifer Rivas sufficiently establishes that “the signatory was required to use a unique, private login and password to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions.” (See Garcia v. Stoneledge Furniture LLC (2024) 102 Cal.App.5th 41, 53; Rivas Decl. ¶¶ 5-17.)

The defendant in Garcia failed to “show that only Garcia could have placed the electronic signature on the arbitration agreement.” (Garcia, supra, 102 Cal.App.5th at p. 53, emphasis in original.) The defendant’s witness “did not explain how he knew that the name ‘Maria Isabel Izzy Garcia’ could have only been placed on the agreement using Garcia's user ID and password and not the other onboarding documents.” (Ibid.) “Instead, [the witness] summarily concluded that Garcia electronically signed and acknowledged the agreement before exiting out of Taleo, with the only purported evidence being her name on the agreement.” (Ibid.)

By contrast, Ms. Rivas does not summarily conclude that Plaintiff signed the arbitration agreement simply because his name is on it. Instead, Ms. Rivas lays out the precise onboarding and security procedures which ensure that Plaintiff is the only person who could have signed the agreement. (See Rivas Decl. ¶¶ 5-17.) Ms. Rivas’ declaration satisfies the standards set forth in Ruiz and Garcia. Plaintiff’s speculation that his account may have been accessed by someone else is unsupported by evidence and insufficient to rebut Defendant’s showing.

Therefore, the Court finds that Defendant has satisfied its ultimate burden of proving the existence of an arbitration agreement.

II.

Unconscionability

Unconscionability has both a procedural and a substantive element. (Aron v. U-Haul Co. of California (2006) 143 Cal.App.4th 796, 808.) Both elements must be present for a court to invalidate a contract or clause. (Ibid.) However, the two elements need not be present in the same degree; courts use a sliding scale approach in assessing the two elements. (Carbajal v. CWPSC, Inc. (2016) 245 Cal.App.4th 227, 242.)

a. Procedural Unconscionability

Procedural unconscionability “focuses on two factors: ‘oppression’ and ‘surprise.’ ‘Oppression’ arises from an inequality of bargaining power which results in no real negotiation and ‘an absence of meaningful choice.’ ‘Surprise’ involves the extent to which the supposedly agreed-upon terms of the bargain are hidden in the prolix printed form drafted by the party seeking to enforce the disputed terms.” (Zullo v. Superior Court (2011) 197 Cal.App.4th 477, 484, internal citations omitted.)

Plaintiff argues that the agreement is oppressive because Defendant presents no facts surrounding the execution of the agreement. However, Defendant has satisfied its burden of showing that an agreement exists. Thus, the burden is on Plaintiff to show unconscionability. (See Pinnacle, supra, 55 Cal.4th at p. 236.) Because Plaintiff does not recall signing the agreement, he can only speculate that the circumstances were oppressive. This is not sufficient to establish unconscionability.

Plaintiff also argues that the agreement was adhesive and was presented to him approximately four years into his employment. However, this only creates a small degree of procedural unconscionability. (See Serpa v. California Surety Investigations, Inc. (2013) 215 Cal.App.4th 695, 704.)

Plaintiff argues that the agreement

contains dense legal jargon and statutory references. However, the agreement is written in plain language and clearly explains that the parties are forgoing their right to a jury trial in favor of arbitration. The agreement is not illegible just because it refers to statutes and other legal procedures to explain the scope of arbitration. The agreement is not “visually impenetrable,” nor does it “challenge the limits of legibility.” (See OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 128.)

Plaintiff argues that the agreement fails to attach the arbitration rules. However, “the failure to attach the [arbitration] rules, standing alone, is insufficient grounds to support a finding of procedural unconscionability.” (Peng v. First Republic Bank (2013) 219 Cal.App.4th 1462, 1472.)

Therefore, the Court finds a low degree of procedural unconscionability.

b. Substantive Unconscionability

Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create overly harsh or one-sided results as to shock the conscience. (Suh v. Superior Court (2010) 181 Cal.App.4th 1504, 1515.)

Plaintiff argues that the PAGA waiver is unconscionable. However, the U.S. Supreme Court has expressly allowed individual PAGA claims to be severed from the representative claims and arbitrated separately. (See Viking River Cruises, Inc. v. Moriana (2022) 142 S.Ct. 1906.) Here, the agreement expressly provides for separate arbitration of individual PAGA claims to the extent applicable law prohibits enforcement of class action or representative action waivers. (Rivas Decl., Ex. 1.) This is in line with the law and does not render the agreement unconscionable.

Plaintiff also argues that the agreement fails to provide for more than minimal discovery as required under Armendariz. However, Plaintiff fails to identify any provision of the agreement in violation of Armendariz. Instead, Plaintiff argues that the agreement fails to specify the precise types of discovery permitted. Armendariz requires no such thing. The agreement satisfies Armendariz by providing that "[t]he parties shall be entitled to engage in reasonable discovery (which is the mutual exchange of information, evidence, and/or known facts of a case or dispute), subject to applicable law current at the time of the proposed arbitration." (Rivas Decl., Ex. 1.)

Providing for discovery under applicable law cannot be considered unconscionable. Plaintiff is not entitled to more discovery than that permitted by applicable law. There is no reason to assume that Plaintiff will be deprived of adequate discovery in arbitration. "We assume that the arbitrator will operate in a reasonable manner in conformity with the law." (Dotson v. Amgen, Inc. (2010) 181 Cal.App.4th 975, 984.)

In sum, the Court finds a low degree of procedural unconscionability and no substantive unconscionability. As a result, the agreement remains enforceable.

CONCLUSION

Defendant Partners Personnel Management Services, LLC's motion to compel arbitration is GRANTED. The case is stayed in its entirety.